

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-3916

WANDA D. CONNELL, QUENTIN JULIAN
CONNELL and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

**REPLY TO AFFIRMATIVE DEFENSES AND MOTION TO STRIKE FIRST AND
SECOND AFFIRMATIVE DEFENSES**

COMES NOW Plaintiff, by and through the undersigned counsel, and pursuant to Fla. R. Civ. P. 1.140(f), moves this Honorable Court to strike Defendant's First and Second Affirmative Defenses as legally insufficient and files this reply to affirmative defenses Three and Four filed by the Defendants, and in support states as follows:

Defendants have failed to allege sufficient facts to defend the Plaintiff's claims for possession of the premises. An affirmative defense is an assertion of facts or law by the Defendant(s), that if true, would void the action. Custer Med. Ctr. v. United Auto. Ins. Co., 62 So. 3d 1086 (Fla. 2010). Midland Trust Co. v. Whitfield Ests., LLC, 2024 Fla. Cir. LEXIS 2154; 2024 LX 157808. (Case No. 2023-CA-004600) (12th Cir. Manatee County, Florida).

1. Defendant's affirmative defense claims that no named Defendant currently resides in Lot 218, or at the time Plaintiff filed its cause of action. These facts do not state an affirmative defense. None of the complaint's allegations are negated by the facts of the alleged affirmative facts. The gravamen of the Plaintiff's complaint that the named defendants violated Plaintiff's park rule by allowing persons not approved

by Plaintiff to reside in mobile home(s) owned by Defendants, that they were notified by the park that they were breaking the Rule that Plaintiff gave them lawful notice of the Rule, advised Defendants how to cure the rule violation, that Defendants failed to cure the violation by failing to remove unapproved persons from the mobile home and that the Defendants failed to timely remove the persons, resulting in termination of the rental agreement. The facts claimed do not negate the allegations, even if true.

2. Defendants claim they have paid rent to Plaintiff or paid rent into the Registry of the Court. These facts, even if true, also do not negate the Plaintiff's claims for possession of the premises. Defendants' obligation to pay rent in the Registry of the Court and having paid rent to Plaintiff is not a defense to Plaintiff's cause of action. Plaintiff's cause of action is not for non-payment of rent, it is for violating the Plaintiff's rules and regulations, procedurally via operation of Fla. Stat. §723.061(1)(c)(2).

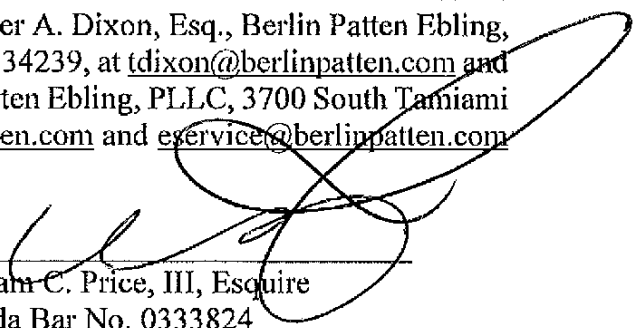
Defendant's obligation to pay rent is set forth statutorily in Fla. Stat. §723.063(2); PAYING RENT EITHER TO THE PLAINTIFF OR INTO THE REGISTRY OF THE COURT IS NOT, IN AND OF ITSELF, AN AFFIRMATIVE DEFENSE. Moreover, as stated in Fla. Stat. §723.061(5), a park owner is not prohibited from accepting rent and bringing an action for possession after termination of a rental agreement. It must only account for the rent received at the final hearing. Defendants' claimed facts are not an affirmative defense.

3. The third affirmative defense is denied and proof is demanded thereof.
4. The fourth affirmative defense is denied and proof is demanded thereof.

WHEREFORE, the Court should issue an Order pursuant to Fla. R. Civ. P. 1.140(f) to strike affirmative defenses 1 and 2, and to order a summary trial of the cause of action pursuant to Fla. Stat. §51.011.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Reply to Affirmative Defenses and Motion to Strike First and Second Affirmative Defenses has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to: Tyler A. Dixon, Esq., Berlin Patten Ebling, PLLC, 3700 South Tamiami Trail, Suite 200, Sarasota, FL 34239, at tdixon@berlinpatten.com and gcare@berlinpatten.com and Sophia Bond, Esq., Berlin Patten Ebling, PLLC, 3700 South Tamiami Trail, Suite 200, Sarasota, FL 34239, at sbond@berlinpatten.com and eservice@berlinpatten.com on this 26th day of January, 2026.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpricelaw.com
Attorney for the Plaintiff